



March 10, 2025

Representative Edgar González, Jr., Chairperson
Cybersecurity, Data Analytics, & IT Committee
240-W Stratton Office Building
Springfield, IL 62706

Representative Daniel Didech, Vice Chairperson
Cybersecurity, Data Analytics, & IT Committee
273 S Stratton Office Building
Springfield, IL 62706

RE: Illinois HB 2913 - Oppose

Dear Chairperson González and Vice Chairperson Didech:

On behalf of the advertising industry, we write to oppose Illinois HB 2913, the Data Broker Registration and Accessible Deletion Mechanism Act.”¹ We offer this letter to express our non-exhaustive list of concerns about this legislation. Our organizations support meaningful privacy protections for Illinoisans. However, as presently drafted, HB 2913 would significantly burden the Illinois Attorney General with the costly and resource-intensive task of creating and administering an untested centralized data deletion mechanism. Data brokers play an integral role in enabling consumers to access desired products, services, and online resources; fostering competitive markets; supporting businesses; and helping reduce prices for consumers. Enacting HB 2913 would create unnecessary requirements for data brokers that may harm small or mid-sized businesses that rely on data brokers to reach new customers. We therefore ask you to decline to advance the bill out of the Cybersecurity, Data Analytics, and IT Committee (“Committee”).

As the nation’s leading advertising and marketing trade associations, we collectively represent thousands of companies across the country. These companies range from small businesses to household brands, advertising agencies, and technology providers. Our combined membership includes more than 2,500 companies that power the commercial Internet, which accounted for 12 percent of total U.S. gross domestic product (“GDP”) in 2020.² Our group has more than a decade’s worth of hands-on experience it can bring to bear on matters related to consumer privacy and controls. We would welcome the opportunity to engage with the Committee further on our comments regarding the bill outlined here.

¹ Illinois HB 2913 (104th General Assembly), located [here](#) (hereinafter “HB 2913”).

² John Deighton and Leora Kornfeld, *The Economic Impact of the Market-Making Internet*, INTERACTIVE ADVERTISING BUREAU, 15 (Oct. 18, 2021), located [here](#) (hereinafter, “Deighton and Kornfeld”).

I. HB 2913 would create enormous and costly new responsibilities for the Illinois Attorney General.

HB 2913 would burden the Illinois Attorney General with the significant task of standing-up and administering an “accessible deletion mechanism,” a technical solution that “allows a consumer, through a single verifiable consumer request, to request that every data broker that maintains any personal information delete any personal information related to that consumer held by the data broker or associated service provider or contractor.”³ The bill, modeled after California’s novel, undeveloped, and untested Delete Act, will create significant costs for the Illinois government in creating and managing such a centralized data deletion mechanism. The California Privacy Protection Agency has estimated that its mechanism will cost anywhere from \$3.5 million to \$4.4 million to develop, with ongoing costs for maintenance.⁴ The agency has not yet revealed the actual cost of the mechanism or how it will technologically communicate the deletion requests it receives to registered data brokers. In 2003, the Federal Trade Commission incurred costs in the amount of \$14.6 million to stand up a similar mechanism—the Do-Not-Call registry—and it incurred further costs of \$14 million in 2024 to maintain that registry.⁵ These actual costs dwarf the number California has estimated its deletion mechanism will cost the state, and industry expects the true cost of the deletion mechanism will be significantly greater than what California has estimated. In addition, “accessible deletion mechanisms” could present data security issues for state governments that administer them, as governments may be required to maintain records of consumers who have submitted deletion requests. If HB 2913 is enacted, the Illinois Attorney General will be hampered with extremely costly and resource-intensive new responsibilities.

II. HB 2913 would impose unnecessary requirements on data brokers.

If enacted, HB 2913 would significantly harm small and mid-size Illinois businesses. Data brokers are vital to new and small businesses’ ability to thrive and find new customers. Much like supply chain partners create value in various sectors of the economy, data brokers serve as intermediaries that help their clients find and attract new and existing customers. Data brokers enable small businesses to leverage more than just the data they receive from direct interactions with their niche customer base. Legal requirements that ignore the value data brokers provide to the economy threaten to impact small businesses the most. Information obtained from data brokers makes it possible for small and mid-size companies with less resources to spend on advertising to reach as many new potential customers as possible and in the most efficient and accountable ways possible. In large part due to services provided by data brokers, small and mid-sized businesses are empowered to compete with larger companies who have more resources to allocate to broad marketing efforts. HB 2913 would undermine new and small Illinois businesses’ ability to compete and remain profitable in the economy.

³ HB 2913 at Sec. 15(a)(2).

⁴ See California Privacy Protection Agency, *Memorandum Regarding SB 362 – Delete Act*, located [here](#).

⁵ See U.S. Government Accountability Office, *Report to Congressional Committees: Telemarketing – Implementation of the National Do-Not-Call Registry* at 4 (Jan. 2005) located [here](#).

III. HB 2913’s “accessible deletion mechanism” requirement would threaten vital services that Illinoisans and Illinois businesses rely upon.

HB 2913’s data broker deletion mechanism would significantly impact the availability of data in the marketplace to power several vital services. For example, data brokers protect Illinoisans by providing data to help verify digital identities and prevent digital fraud, saving senior citizens and other vulnerable populations from having their accounts compromised and savings stolen. HB 2913 could force data brokers to delete data used for fraud prevention, thereby making it easier for criminals to focus their scams and online attacks on Illinois’s most vulnerable populations. In addition, data brokers provide services that help states administer public benefits, like unemployment and nutrition assistance, and they help governments oversee and reduce fraud perpetrated on those important systems.

If enacted, HB 2913 would result in a lack of necessary data to police fraud and waste in those systems due to broad deletion requests, resulting in increased misallocation of government funds and susceptibility to criminal and fraudulent schemes. HB 2913 would also measurably reduce funding for nonprofits and charitable organizations and would impede political campaigns from reaching voters and raising funds. Charitable organizations depend on data provided by data brokers to identify and reach new donors and volunteers interested in their missions. Without that data, Illinois charities of every kind—from veterans’ service organizations and food assistance programs to animal welfare groups—will suffer. In addition, political campaigns that rely on data broker services to educate and identify voters as well as fundraise will lose access to those services. If enacted, HB 2913 would remove data in the marketplace that powers services Illinois businesses and consumers rely upon and expect.

IV. HB 2913 does not clearly foreclose the possibility of a private right of action.

HB 2913 permits enforcement under the state’s Consumer Fraud and Deceptive Business Practices Act.⁶ Enforcement authority should be the Attorney General’s purview. To avoid any confusion regarding who can take legal action, HB 2913 should explicitly state in the bill that it does not grant a private right of action. Without an explicit statement, potential legal ambiguity could create confusion among consumers and businesses.

* * *

We and our members support protecting consumer privacy. We believe, however, that HB 2913 is unnecessary and would remove vital data from the marketplace, resulting in detrimental impacts for Illinois consumers and businesses alike. The bill would also levy significant expenses on the Illinois Attorney General to stand up and administer a novel accessible deletion mechanism. We ask the Committee to decline to advance the bill any further in the legislative process.

⁶ HB 2913 at Sec. 20.



Thank you in advance for your consideration of this letter.

Sincerely,

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